

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Plaintiff designates Bronx
County as the place of trial

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MICHELLE PILCHER,

Basis of venue is
location of occurrences

Plaintiff,

SUMMONS WITH NOTICE

-against-

THE CITY OF NEW YORK, NYPD OFFICER
MERLIN ALSTON, NYPD CAPTAIN LYNCH,
NYPD OFFICER DANIEL KERN (Shield No. 9634),
NYPD OFFICER MARCO MORRONE (Shield No. 10632),
NYPD OFFICER BRENDAN MURPHY (Shield No. 13053) and
VARIOUS JOHN DOE OFFICERS, THE TRUE IDENTITIES
OF WHICH ARE UNKNOWN TO PLAINTIFF,

ORIGINAL
for

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

SUMMONS: YOU ARE HEREBY SUMMONED to appear in this action and are required to serve a notice of appearance or a demand for the complaint on plaintiff's attorney within twenty (20) days after the service of this summons with notice, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and, in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

NOTICE

NATURE OF ACTION: To recover damages for injuries sustained by plaintiff as a result of the negligence, recklessness, and intentional conduct (including assault and battery, false arrest and malicious prosecution, and intentional infliction of emotional distress) of The City of New York, its agents, servants and/or employees, including but not limited to agents, servants and/or employees of the New York Police Department (NYPD), including but not limited to NYPD Officer Merlin Alston, NYPD Captain Lynch, NYPD Officer Daniel Kern (shield No. 9634), NYPD Officer Marco Morrone (Shield No. 10632), NYPD Officer Brendan Murphy (Shield No. 13053), and various John Doe Officers, the true identities of which are unknown to plaintiff. Claim is also made for violation of plaintiff's rights under the Article I, §§ 6, 9 and 12 of the New York State Constitution. Claim is also made for negligent hiring, retention, and training of agents, servants and/or employees of the City of New York, including but not limited to the aforesaid police officers.

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CLERK OF SUPREME COURT
BRONX COUNTY

Claim is also made under 42 USC §§ 1981, 1983 and 1985 for deprivation of plaintiff's civil rights under color of state law.

The causes of action arose out of several incidents, each involving officers of the New York Police Department, and each involving (among others) NYPD Officer Merlin Alston (hereinafter "Alston"). Plaintiff alleges, among other things, that the officers, particularly Alston, engaged in a systematic campaign of threats, intimidation, harassment, and brutalization of plaintiff. The incidents included the following:

Incident No. 1: On or about May 6, 2014 at approximately 5:45 p.m., at or around the intersection of 183rd Street and Morris Avenue, Bronx, NY, plaintiff was forcibly stopped by Alston and another NYPD officer (upon information and belief a "Captain Lynch") and also NYPD Officer Daniel Kern (Shield No. 9634), without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation. Thereafter, plaintiff was searched and seized, handcuffed and arrested and forcibly taken to various locations against her will, including a police precinct and Central Booking. On or about May 7 or May 8, 2014, the NYPD officers also initiated a malicious prosecution of plaintiff by charging her with crimes of which she was innocent and compelling her to appear in court to defend against those criminal charges. All charges against plaintiff were dismissed on May 19, 2015.

Incident No. 2: On or about June 7, 2014 at approximately 12:30 a.m., at or around 2332 Creston Avenue, Bronx, NY, plaintiff was forcibly stopped by Alston and other NYPD officers [including upon information and belief NYPD Officer Marco Morrone (Shield No. 10632) and NYPD Officer Brendan Murphy (Shield No. 13053)], without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation. Thereafter, plaintiff was searched and seized, handcuffed, maced, brutally beaten, and arrested and forcibly taken to various locations against her will, including a police precinct, where she was strip searched, and Central Booking. Plaintiff also was forcibly confined in police custody in a hospital for a period of two days immediately following her arrest. On or about June 7, 2014, the NYPD officers also initiated a malicious prosecution of plaintiff by charging her with crimes of which she was innocent and compelling her to appear in court to defend against those criminal charges.

Incident No. 3: On or about July 19, 2014 at approximately 1:30 p.m., at or around 2314 Morris Avenue, Bronx, NY, plaintiff was forcibly stopped by Alston without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation. On or about July 19, 2014, Alston also initiated a malicious prosecution of plaintiff by charging her with crimes of which she was innocent and compelling her to appear in court to defend against those criminal charges. All charges against plaintiff were dismissed on November 19, 2014.

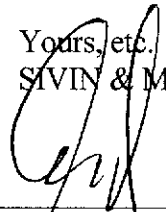
Incident No. 4: On or about August 6, 2014 at approximately 9:30 p.m. at or around 2332 Creston Avenue, Bronx, NY, plaintiff was forcibly stopped by Alston without probable cause or reasonable suspicion to believe that plaintiff had committed or was

about to commit any crime or criminal violation. Thereafter, plaintiff was searched and seized, handcuffed and arrested and forcibly taken to various locations against her will, including a police precinct. On or about August 6, 2014, Alston also initiated a malicious prosecution of plaintiff by charging her with crimes of which she was innocent and compelling her to appear in court to defend against those criminal charges. All charges against plaintiff were dismissed on October 3, 2014.

RELIEF REQUESTED: Plaintiff seeks from all defendants compensatory damages in the amount of TWO MILLION (\$20,000,000.00) DOLLARS, with punitive damages and attorney's fees, and interest, costs, and disbursements of this action.

Dated: New York, New York
July 22, 2015

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To: NYPD Officer Merlin Alston
c/o NYPD Military Extended Leave Desk
One Police Plaza, Rm. 1008
New York, NY 10007

NYPD Officer Daniel Kern
c/o NYPD Military Extended Leave Desk
One Police Plaza, Rm. 1008
New York, NY 10007

NYPD Officer Marco Morrone
c/o NYPD Military Extended Leave Desk
One Police Plaza, Rm. 1008
New York, NY 10007

NYPD Officer Brendan Murphy
c/o NYPD Military Extended Leave Desk
One Police Plaza, Rm. 1008
New York, NY 10007

Index No.

Year 2015

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SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

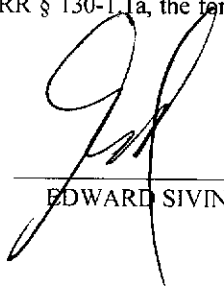
New York, NY 10007

(212) 349-0300

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Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the foregoing Summons with Notice is not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
July 22, 2015